

20SMCV00385 20SMCV00385

County: los-angeles

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Case Number: 20SMCV00385 Hearing Date: September 17, 2026 Dept: N

TENTATIVE RULING

Plaintiff Kim Kanner's Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure section 664.6 by Appointment of the Independent Referee Contemplated by Sections 2.3(c) and 2.5 of the Settlement Agreement is GRANTED.

The Court appoints the Honorable Terry Green (Ret.) as a referee for this action.

Plaintiff Kim Kanner to give notice.

REASONING

Plaintiff Kim Kranner ("Plaintiff") moves the Court for an order enforcing the parties' March 11, 2024 Settlement Agreement by appointing the independent referee contemplated by Sections 2.3(c) and 2.5 of the Settlement Agreement pursuant to Code of Civil Procedure sections 638 and 640.

"If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6.)

Here, Plaintiff has shown that the parties requested that the Court retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. (Johnson Decl., Ex. A – Release and Settlement Agreement § 2.8; March 27, 2024 Order.) Thus, the Court has jurisdiction.

Plaintiff argues that Sections 2.3(c) and 2.5 provide that disputes concerning the sale of the Property and the purchase of the parties' respective interests in Kanan Development shall be determined by an independent referee.

Section 2.3(c) provides that "[i]f a party declines an offer and does not make an offer to purchase, the referee shall determine if the offer being made is reasonable under the circumstances and may order the sale for the Property or interest on the terms set forth in the offer." (Johnson Decl., Ex. A – Release and Settlement Agreement § 2.3(c).) Section 2.5 provides that "[a]ny conflict with respect to the sale of the Property or the purchase of the interest in Kanan Development as set forth above shall be conclusively resolved by the independent referee appointed by Judge Gross. The matter shall be submitted to the

referee by written application for determination and shall be determined after a single hearing in which oral argument may be made by counsel for each party.” (Johnson Decl., Ex. A – Release and Settlement Agreement § 2.5.)

Here, Plaintiff has shown that the Settlement Agreement includes an agreement in writing that any or all issues shall be heard by referee and thus, the appointment of a referee is proper. (Code Civ. Proc., § 638, subd. (a) [“A referee may be appointed upon the agreement of the parties filed with the clerk, or judge, or entered in the minutes, or upon the motion of a party to a written contract or lease that provides that any controversy arising therefrom shall be heard by a referee if the court finds a reference agreement exists between the parties . . . [t]o hear and determine any or all of the issues in an action or proceeding, whether of fact or of law, and to report a statement of decision”].)

Code of Civil Procedure section 640 provides the procedure for appointing a referee. “The court shall appoint as referee or referees the person or persons, not exceeding three, agreed upon by the parties.” (Code Civ. Proc., § 640, subd. (a).)

Plaintiff has provided three nominees for appointment as referee whom Plaintiff argues possess substantial experience in complex civil litigation and service as a judicial neutral. Defendants Richard Thurman and Kanan Development, L.P. (formerly Kanan Development, LLC) (collectively, “Defendants”) in their notice of non-opposition state that they do not oppose Plaintiff’s motion to appoint an independent referee and that they specifically agree and consent to the appointment of Hon. Terry Green (Ret.), who was proposed as a referee for this action by Plaintiff. Defendants request the appointment of Hon. Terry Green (Ret.) in this action.

Accordingly, the Court appoints the Honorable Terry Green (Ret.) as a referee for this action.